

26NNCV00784 26NNCV00784

County: los-angeles

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Case Number: 26NNCV00784 Hearing Date: July 10, 2026 Dept: B

Hon.

Victor Avila, Dept B

DEMURRER

TO COMPLAINT

Hearing Date: 7/10/26

CASE

NO./NAME: 26NNCV00784 Karl Marsh, et al. v. City of Glendale

Moving Party: Defendant

City of Glendale

Responding Party:

Plaintiffs Karl Marsh and Mai Ly Marsh

Notice: Sufficient

Ruling: SUSTAINED without

leave to amend

NOTICE:

The Court is not requesting oral

argument on this matter. The Court is guided by California Rules of

Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested.

Unless the Court directs argument in the Tentative Ruling, no argument is

requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given either by email
at or by telephone at (818) 260-8422.

BACKGROUND

This is a dangerous condition of public property action. Plaintiffs Karl Marsh and Mai Ly Marsh (collectively Plaintiffs) reside at 1261 Cordova Ave., Glendale California 91207. (Complaint, ¶ 11.) Plaintiffs complained to defendant The City of Glendale (Defendant) about a dangerous condition, a leaning tree, existing on public property adjacent to Plaintiffs residential address. (Complaint, ¶ 12.) However, Defendant did not repair the tree and on January 7, 2025, the tree fell onto Plaintiff's residential property causing significant damage. (Complaint, ¶¶ 13-14.)

On February 2, 2026, Plaintiffs filed the operative Complaint asserting two causes of action for (1) negligence, and (2) dangerous condition of public property. On March 19, 2026, Defendant filed the instant demurrer to the first cause of action for negligence. On June 26, 2026, Plaintiffs filed an opposition. On July 2, 2026, Plaintiffs filed a reply.

LEGAL STANDARD

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

Further, the court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 [court shall not “sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment”]; *Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1037 [“A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment.”]; *Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768 [“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

DISCUSSION

Defendant demurs to the first cause of action for Negligence asserted by Plaintiffs for failure to state facts sufficient to constitute a cause of action. Specifically, Defendant argues that because they are a public entity, they are not liable for tortious injury unless imposed by statute. (Dem., p. 4.) Defendant further argues that they are not subject to vicarious liability under section 815.2 subdivision (a). (Dem., p. 5.) Defendant argues that the proper cause of action under this set of facts, dangerous condition of public property, has already been brought by Plaintiffs. (Ibid.)

In California, all government tort liability must be based on statute. (*Rodriguez v. Inglewood Unified School Dist.* (1986) 186 Cal.App.3d 707, 716.) Here, Plaintiffs allege a cause of action for negligence under section 815.2 subdivision (a) on the theory that if Defendant were not a

public entity, their actions would have given rise to liability. (Gov. Code § 815.2(a).)

Plaintiffs argue that they have pled facts sufficient to state a claim for negligence. (Opp., p. 3.) Plaintiffs argue that Defendant owned and controlled the tree, received notice of the dangerous condition, failed to remedy it, and the tree subsequently fell onto Plaintiffs' residence causing damage. (Opp. p. 4.) Plaintiffs argue that whether or not Defendant is subject to liability is a substantive determination, not a question of the sufficiency of the pleadings. (Ibid.) In reply, Defendant argues that the claim cannot be successfully stated because a public entity such as a City cannot be held liable on a theory of common law negligence. (Reply, p. 1.)

In *Van Kempen*, a work bench owned by a park, a public entity, was leaning against a wall and fell on the minor plaintiff injuring his leg. Plaintiff in that case argued that the park was vicariously liable under section 815.2. However, the court in *Van Kemper* stated that the argument was misplaced and held that "public entity liability for property defects is not governed by the general rule of vicarious liability provided in section 815.2, but instead by the specific provisions set forth in sections 830-835.4", which is the statute governing dangerous conditions of public property. (*Van Kempen v. Hayward Area Park Etc. Dist.* (1972) 23 Cal.App.3d 822, 825.) The proper cause of action under these facts is dangerous condition of public property. Plaintiffs have already stated the cause of action for dangerous condition of public property in the Complaint. (Complaint, ¶¶ 23-27.)

Defendant, a public entity, cannot be held liable under a theory of common law negligence as pleaded by Plaintiffs. Thus, Plaintiffs have failed to state a viable claim for negligence.

An amendment to the first cause of action for negligence cannot cure the defect as common law negligence is not a statute and the City of Glendale is a public entity. Thus, Defendant's demurrer to the second cause of action for negligence is sustained without leave to amend.

CONCLUSION

AND ORDER

Defendant City of Glendale's demurrer to the first cause of

action for Negligence is sustained without leave to amend.

Defendant City of Glendale shall provide notice of this order.

Hon. Victor Avila

Judge of the Superior Court